

Guide to disputing false damage claims with photo evidence templates and state demand letter — Action Checklist

PRINT THIS PAGE AND KEEP IT SOMEWHERE VISIBLE

DOCUMENT YOUR MOVE-IN CONDITION

- ☐ **Document Your Move-In Condition:** Walk through every room before signing any condition form and photograph all walls, floors, ceilings, and fixtures using your phone's timestamp feature to create a dated record of the property's actual state when you took possession.
- ☐ **Document Your Move-In Condition:** Open every cabinet, drawer, door, and appliance door during your move-in audit and photograph the interior conditions so you have evidence of pre-existing wear that landlords commonly cite at move-out.
- ☐ **Document Your Move-In Condition:** Check behind and beneath all furniture in each room and photograph any carpet stains, worn paths, or damage hidden from casual view, because landlords will document every visible flaw even if you missed it during the initial walkthrough.
- ☐ **Document Your Move-In Condition:** Photograph and record the condition of every light switch, outlet cover, faucet, fixture, and door handle in the property, because these small items frequently appear on itemized deduction lists despite being wear-prone from normal use.

BUILD YOUR EVIDENCE LIBRARY

- ☐ **Build Your Evidence Library:** Create a separate folder on your phone or computer for each room and upload all move-in photos with metadata intact so the timestamps and geolocation data remain attached to your documentation.
 - ☐ **Build Your Evidence Library:** Compare your move-in photos against the landlord's itemized deduction list and flag every claim that contradicts your documented pre-existing condition by writing the specific contradiction in a separate notes file.
 - ☐ **Build Your Evidence Library:** Gather all related records including your lease agreement, condition form, rent receipts, and any written communications with your landlord and store them together with your photo evidence in a single organized location.
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- **Build Your Evidence Library:** Screenshot or download any online portal entries, email confirmations, or text message exchanges with your landlord and add them to your evidence folder because digital records can disappear or become inaccessible after move-out.

PREPARE YOUR DISPUTE CASE

- **Prepare Your Dispute Case:** Read each line item on your itemized statement and write down exactly what evidence you have that contradicts the landlord's damage claim, including specific photos, dates, and descriptions from your move-in audit.
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- **Prepare Your Dispute Case:** Identify every charge that lacks documentation by the landlord, such as invoices with no dates, receipts for services you performed yourself, or labor charges without itemized work descriptions, because these unsupported charges are your strongest dispute targets.
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- **Prepare Your Dispute Case:** Total up the disputed amount and calculate your state's maximum allowable deadline for sending a demand letter, because missing this deadline can forfeit your right to claim twice the deposit amount in many states.
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- **Prepare Your Dispute Case:** Write a chronological summary of your tenancy that notes all maintenance requests, inspections, and communications with your landlord to include with your demand letter as supporting context for your dispute.
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Companion to the full guide in your Lemon Squeezy library — check off each item as you complete it.